

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

TYKEISHA SMITH,

SUMMONS

Plaintiff,

Index No.

-against-

Plaintiff Designates Bronx County
As Venue for Trial Pursuant to
Pursuant to CPLR Section 503

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. DAVID, TAX REGISTRATION NO. 954701, 40th PRECINCT,
IN HIS INDIVIDUAL CAPACITY.

Defendants,

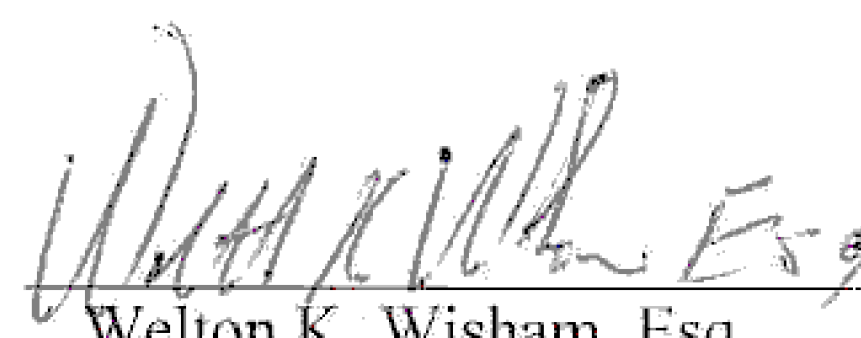
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You are hereby summoned to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 9, 2023

Bronx, New York

By

 Esq.

Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
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Bronx, New York 10461
718- 924-3557 Office
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Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

TYKEISHA SMITH,

ECF
COMPLAINT

Plaintiff,

- against -

-

Index No.

Plaintiff Designates
Bronx County as Place of Trial
Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. DAVID, TAX REGISTRATION NO. 954701, 40th PRECINCT,
IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

Plaintiff, **Tykeisha Smith**, by her attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for her Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and Police Officer David, in his individual, and official capacity.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role of their unreasonable and unlawful search, seizure and deprivation of Ms. Smith's Constitutional rights on or about October 17, 2022, at approximately 3:30 pm. Officer David arrested Plaintiff inside her home located at 760 Melrose Ave, Apt 1A, Bronx, New York 10453.

2. Defendants, knowingly and willfully with deliberate indifference to Plaintiff's Constitutional rights, Unreasonably Search, Seize, Falsely Arrested and Imprisoned Ms. Smith by entering Plaintiff's home without a warrant and arrested Plaintiff without probable cause.

3. This action is predicated on vindicating Plaintiff's rights pursuant to 42 U.S.C Section 1983, for the violation of Plaintiff's rights arising under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and violations of f New York State law for Negligence, False Arrest and Respondeat Superior.

4. The violations of law as set forth above which give rise to Plaintiff's claims set forth herein were all caused by the intentional, negligent, reckless, and deliberate indifference of officer David, the New York Police Department, its agents, servants who directly participated in the unlawful and unreasonable search and seizure and arrest of Ms. Smith on October 17, 2022, without legal justification.

5. That on October 17, 2022, at approximately 3.30 Ms. Smith arrived at P.S./M.S. 29 Melrose School located on 758 Courtland Ave. Bronx, New York to pick up her daughter, KD, a nine (9) year old minor who was enrolled in the third grade.

6. Ms. Smith was shocked and disturbed that her daughter, KD was not at the school but had been reported missing.

7. KD had previously been diagnosed with a attention deficit disorder which was known to the school administrators.

8. Attention- deficit disorder (ADD) is a behavioral disorder that begins in early childhood and is characterized aby a short attention span and an inability to be calm and stay still.

9. ADD also causes a child such as KD to have poor impulse control . KD has all three symptoms of ADD.

10. On the morning of October 17, 2022, Ms. Smith as usual, took KD to school at approximately 7:45 am.

11. Plaintiff returned to the school at approximately 2:40 pm to pick KD up from school.

12. Ms. Smith however, was informed by a teacher at the school that her daughter had “run off”!

13. No one from the school called Ms. Smith to inform her that her daughter had run away from school.

14. Ms. Smith became alarmed, and started to frantically look for her daughter.

15. Plaintiff Smith, along with her other two minor children, one of whom was a newborn, went to a nearby park to look for her daughter who may have wandered into the park.

16. KD was not in the park.

17. Ms. Smith continued to look for her daughter in the surrounding neighborhood without success.

18. Approximately thirty minutes later, Ms. Smith call the police for immediate assistance using the emergency phone number, 911 for help.

19. Several members of the New York City Police Department arrived at Ms. Smith 's home approximately eight (8) hours later.

20. Officer David along with several other members of the NYPD began to question the Ms. Smith regarding her missing daughter.

21. The police left, and returned approximately one hour later along with Ms. Smith daughter and two unknown females who had found KD wandering around the neighborhood.

22. The officers however, pushed their way inside Ms. Smith 's home without permission and began to search Ms. Smith 's apartment throwing out clothes and ignoring Ms. Smith 's pleas to stop.

23. Ms. Smith was subsequently arrested and charged with endangering the welfare of her minor child and assault on KD .

24. Plaintiff was taken to the 40th police precinct and then taken to central booking where she was fingerprinted and photographed.

25. On or about October 19, 2022, Plaintiff received a letter from the Bronx District Attorney's Office that there were no charges against her stemming from Plaintiff October 17, 2022, arrest because the officer had failed to file an accusatory instrument charging Plaintiff with any crime.

26. Tykeisha Smith was caused to suffer severe emotional stress ,loss of liberty, humiliation and embarrassment Officer David's outrageous conduct.

27. The arrest, and seizure of Ms. Smith and the search of Plaintiff's home and arrest was objectively unreasonable under the circumstances described herein.

28. That Plaintiff now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law for the violations of her constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States and pursuant to New York State law.

JURISDICTION AND VENUE

29. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

30. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

31. This Court has concurrent jurisdiction over Plaintiff's federal civil rights causes of action predicated under 42 U. S. C. Section, 1983.

32. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

33. Plaintiff, **Tykeisha Smith** at all relevant times herein was and still remains a resident of Bronx, County and the State of New York. Ms. Smith is a citizen of the United States.

34. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

35. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

36. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

37. That at all times relevant herein, Defendants Police officers David was duly appointed as police officer of the New York City Police Department and was directly involved in the incident underlying this lawsuit.

38. Officer David is believed to be assigned to the 40th precinct located at 257 Alexander Ave. Bronx, New York.

39. That the Defendant police officers were at all times mentioned in this Complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of

law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

40. That at all times relevant hereto, the New York City Police Department, ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

41. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

42. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

43. That at all relevant times, Officer David, acted under color of state law at the time of this incident.

44. At all times relevant herein, officer David remains employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

JURY DEMAND

45. Plaintiff demands trial by jury.

NOTICE OF CLAIM

46. On or about December 13, 2022, Plaintiff in furtherance of her New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety

days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officer Davis in compliance with General Municipal Law Section 50-e.

47. On December 20, 2022, the Comptroller of the City of New York acknowledge receipt of Ms. Smith's timely filed Notice of Claim by assigning claim number 2022PI036224.

48. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

49. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the Notice of Claim.

50. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

51. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

52. That by reason of the foregoing, Plaintiff, **Tykeisha Smith** has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

53. On or about October 17, 2022, at approximately 8:30 am, Ms. Smith took her nine-year-old daughter, KD, to school at P.S.M.S 29, where KD was enrolled in the third grade.

54. At approximately 2:45 pm Ms. Smith arrived at the school, at P.S./M.S. 29 Melrose School located on 758 Courtland Ave. Bronx, New York to pick up her daughter, KD. KD was not there.

55. A teacher at the school informed Ms. Smith that KD had left the school to go home. Ms. Smith frantically began to look around the neighborhood for her daughter. Ms. Smith went to the nearest park, Garcia Park on East 160th St, in the Bronx to see if her daughter was playing in the park. KD was not in the park.

56. Ms. Smith began to search the nearby stores and playground near the school in the Bronx, New York. KD was nowhere in sight.

57. Plaintiff made several inquiries with strangers near the school whether or not they had seen her nine-year-old daughter who suffers from attention deficit disorder as set forth above.

58. KD has a history of having been diagnosed with a attention deficit disorder.

59. Attention- deficit disorder (ADD) is a behavioral disorder that begins in early childhood and is characterized by a short attention span and an inability to be calm and stay still.

60. That ADD also causes a child such as KD to have poor impulse control.

61. KD has all three symptoms of ADD.

62. Ms. Smith immediately called 911 at approximately 3:40 pm to report her daughter missing.

63. Hours later, at approximately 12:pm members of the New York City Police Department finally responded to Ms. Smith 's call. Several police officers arrived at Plaintiff's residence and began to question Smith concerning Plaintiff's call regarding her missing daughter.

64. Ms. Smith gave the officers a description of her daughter and a description of the clothes her daughter was wearing.

65. The officers left Ms. Smith 's residence and Ms. Smith continued to care for her two other children, a two-year-old and a new born approximately one week old.

66. Hours later, the police returned to Ms. Smith's home with Plaintiff's daughter accompanied by two unknown females that had found KD.

67. Ms. Smith was told that she was **under arrest for endangering** the welfare of her child and for assaulting her daughter.

68. The arresting officer offered no evidence to support his contention that Smith had in fact assaulted her daughter.

69. Ms. Smith vehemently denied the charges.

70. The officers had pushed their way into the Ms. Smith 's home and began to conduct search without permission.

71. Plaintiff did not consent to the entry into her home by Officer Davis and other NYPD police officers.

72. The officers went inside Ms. Smith 's bedrooms and began to open drawers and throw Ms. Smith 's clothes on the floor.

73. Plaintiff was extremely upset by the unreasonable actions of officer David who knowingly and willfully ignored Plaintiff's constitutional rights by arresting Plaintiff without the requisite probable cause to have reasonably believed that Ms. Smith had endangered her daughter's welfare or assaulted her child. No evidence was introduced by the Defendant police officer.

74. The officers proceeded to go into Ms. Smith s' closets and threw Ms. Smith 's clothes on the ground.

75. The officers continued to walk around Ms. Smith's home without permission opening Ms. Smith's bags and throwing items onto the floor.

76. The officer's tore through Ms. Smith's apartment without legal justification causing Plaintiff undue emotional stress and anxiety.

77. Ms. Smith was traumatized by the unlawful actions of the Respondent officers.

78. Ms. Smith was subsequently arrested by officer David and taken to the 40th police precinct on 257 Alexander Ave. Bronx, New York where she was held for several hours.

79. Plaintiff was then taken to central booking on East 161st Street, Bronx, New York where she was held for approximately twenty-four hours without probable cause.

80. Ms. Smith's minor children were left in Ms. Smith's home with police officers until Ms. Smith's mother arrived approximately one hour later.

81. Plaintiff was released from Central Booking and told by police officers that she could go.

82. Officer David did not give Plaintiff an appearance ticket. No charges were filed against Plaintiff Smith.

Case Dismissed: lack of accusatory instrument

83. On October 19, 2022, Ms. Smith received a letter from the Bronx District Attorney's Office informing Ms. Smith her Arrest under arrest number B22636207 in Bronx, County indicating that there were **"no pending charges nor has there been an accusatory instrument drafted nor filed under this specific arrest number against Takeisha Smith.**

84. The New York City Police Department has established an unlawful pattern and practice of allowing police officers to arrest and detain individuals without filing accusatory

instruments in violation of New York State law and the guidelines set forth in the New York City Police Training Manual.

85. That that failure to file accusatory instruments indicates lack of probable for Plaintiff's arrest.

86. That the practice is so widespread that it has become an informal policy of falsely arresting individuals and holding such individuals in custody and releasing such detainees without being charged with criminal activity.

87. The Bronx District Attorney's office documents such negligence of the New York City Police Department by noting that the arrest are voided because the arresting officers failed to draft an accusatory instrument and file such charges with the district attorney's office.

88. That Plaintiff's arrest constituted a blatant abuse of police power in direct violation of Plaintiff's Constitutional rights.

89. Plaintiff now files the instant Complaint for financial compensation pursuant to 42 U.S.C. Section 1983 and New York State law..

90. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Ms. Smith was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF TYKEISHA SMITH AGAINST P.O. DAVID FOR FALSE ARREST AND FALSE
IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983, AND UNDER ARTICLE
I SECTION 12 , OF THE CONSTITUTION OF THE STATE OF NEW YORK**

91. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "90", with the same force and effect as though more fully set forth at length herein.

92. That at all time herein mentioned and upon information, and belief, the Defendant Police David was and remains a member of the New York City Police Department believed to be assigned to the 40th police precinct in the Bronx, New York.

93. That at all time herein mentioned the Defendant, City of New York, maintained, operated and controlled the New York City Police Department within the City of New York.

94. That at all time hereinafter mentioned the City of New York, employed the officers in the instant action in the New York City Police Department.

95. That at all times hereinafter mentioned the Defendant, P.O. David was employed by the Defendant City of New York, as a servant, agent, and/or employee of the Defendant City of New York, who acted within the scope of his employment at the time of Plaintiff's arrest.

96. That on or about October 17, 2022,, at approximately 12:pm. Officer David entered Plaintiff's home and arrested Ms. Smith leaving Plaintiff's children with unknown New York City Police officers.

97. Officer David entered Plaintiff's home without a warrant.

98. Once inside Plaintiff's home, the Defendants yelled and screamed at the Plaintiff and began to go inside Plaintiff's personal belongings without consent.

99. That the Defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, searched, seized, imprisoned, detained, and restrained the Plaintiff.

100. Ms. Smith immediately called 911 at approximately 3:40 pm to report her daughter missing.

101. Hours later, at approximately 12:pm members of the New York City Police Department finally responded to Ms. Smith 's call. Several police officers arrived at Plaintiff's

residence and began to question Smith concerning Plaintiff's call regarding her missing daughter.

102. Ms. Smith gave the officers a description of her daughter and a description of the clothes her daughter was wearing.

103. The officers left Ms. Smith's residence and Ms. Smith continued to care for her two other children, a two-year-old and a new born approximately one week old.

104. Hours later, the police returned to Ms. Smith's home with Plaintiff's daughter accompanied by two unknown females that had found KD.

105. Ms. Smith was told that she was **under arrest for endangering** the welfare of her child and for assaulting her daughter.

106. The arresting officer offered no evidence to support his contention that Smith had in fact assaulted her daughter.

107. That at all time herein mentioned, Ms. Smith was unreasonably seized, detained, and imprisoned by the Defendants without probable cause, legal justification, or consent of the Plaintiff.

108. That at all times herein mentioned, Plaintiff, were falsely imprisoned, detained, restrained, harassed and humiliated by the Defendant police officers who were members of the New York City Police Department of the City of New York, and who were agents, servants and/or employees of the Defendant, City of New York, acting under and within the scope of their employment and under color of law at the time of the incident complained of herein.

109. That at all times herein mentioned, the Defendants intended to confine Plaintiff without privilege and without probable cause.

110. Plaintiff was conscious of her confinement and did not consent to such confinement.

111. That Defendants violated Plaintiffs' Fourth Amendment rights under the Constitution of the United States which guarantees Plaintiff's right to be secure in his persons, houses, papers and effects, against unreasonable searches and seizure.

112. That the manner in which the Defendant police officers entered Plaintiff's residence and forced their way into Plaintiff's personal effects was objectively unreasonable in violation of the Fourth Amendment.

113. That the Defendant police officers as agents, servants and, or employees of the New York City Police Department, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized Plaintiff Smith.

114. That as a result of the false imprisonment, detention, harassment, humiliation and embarrassment, Ms. Smith was caused to suffer severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of her civil rights, and freedom, under the Constitution of the United States and under Article I Section 12, of the Constitution of the State of New York.

115. That Plaintiff's arrest, false imprisonment and detention by the Defendant police officers constituted a malicious, wanton, and reckless act and degradation and deprivation of Smith's liberty without due process of law.

116. That this action is brought pursuant to 42. U.S.C. Section 1983, which recognizes Plaintiff's right to seek legal redress and compensation for the Constitutional violations committed by the Defendants.

117. That as a direct, and proximate result of the acts, and omissions of the Defendants herein described, Tykeisha Smith was caused to suffer great mental pain and agony, and emotional pain, anguish and suffering and harm.

118. That in the manner describes herein, the Defendants acted carelessly and recklessly with total disregard and with deliberate indifference to the constitutional rights of the Plaintiff.

119. That the Defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon Plaintiff.

120. That by reason of the foregoing Plaintiff Tykeisha Smith has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
TYKEISHA SMITH AGAINST POLICE OFFICER DAVID PURSUANT TO 42 U.S.C
SECTION 1983 FOR VIOLATING PLAINTIFFS' RIGHT TO BE FREE FROM
UNREASONABLE SEARCH AND SEIZURE.**

121. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "120," with the same force and effect as though more fully set forth at length herein.

122. Section 1983 states in relevant part that:

"Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress..." 42 U.S.C Section 1983,

123. Plaintiff's federal causes of action are brought against the Defendant police officers pursuant to 42 U.S.C. Section 1983, for violations Plaintiff's federal rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States for the Defendant's unreasonable search and seizure of Plaintiff, **Tykeisha Smith on October 17, 2022.**

124. The Fourth Amendment to the Constitution of the United States that :

“The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.” U. S. Const. amend. IV.

125. Defendant, P.O. David clearly violated Plaintiff's rights under the Fourth Amendment by entering Plaintiff's home without consent and conducting an illegal search throughout Ms. Smith's residence without consent and without a warrant.

126. No exigent circumstances existed that authorized officer David's entry and search of the Plaintiff's residence.

127. That the manner in which the Ms. Smith was held in custody as more fully set forth above was objectively unreasonable under the circumstances as set forth herein.

128. Plaintiff was harassed, threatened and intimidated, assaulted, ridiculed and held against his will by the Defendant officers without reason or legal justification.

129. Officer David searched, seized, and deprived Plaintiff of her liberty without due process of law.

130. In the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard of the Plaintiff's constitutional rights.

131. Ms. Smith was deprived of her rights, privileges and immunities secured to her under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

132. Plaintiff was deprived of her right to be free and secured in her home and to be free from false arrest and imprisonment, unreasonable search and seizure, without probable cause or legal justification.

133. Defendant police officer David acting in his individual, and official capacity, and under color of law, conspired together and with other police officers, reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

134. As a direct and proximate result of the conspiracy between the Defendant officers, Ms. **Tykeisha Smith** was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

135. As a consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF TYKEISHA
SMITH AGAINST POLICE OFFICER DAVID PURSUANT TO 42 U.S.C
SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER
THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES**

136. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "135, with the same force and effect as though more fully set forth at length herein.

137. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs' right to free from the deprivation of liberty without due process of law.

138 That the Defendant Officers 'detainment and seizure of the Plaintiff inside Plaintiff's residence and the manner in which officer David forced his unlawful entry into Ms. Smith home without consent and threw Plaintiff's clothes around as set forth in the proceedings paragraphs ,constituted a display of deliberated indifference to Plaintiff's right to be free from the deprivation of liberty without due process of law.,

139. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment pain, suffering, and mental anguish.

AS AND FOR A FOURTH CAUSE OF ACTION FOR RESPONDEAT SUPERIOR AGAINST THE CITY OF NEW YORK PURSUANT TO NEW YORK STATE LAW.

140. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "139", with the same force and effect as though more fully set forth at length herein.

141. That the City of New York hired and supervised Defendant, police officer David who entered Plaintiffs' home without a warrant and seized the Plaintiff without probable cause and caused Plaintiff's arrest and detention

142. That officer David forced Ms. Smith to allow entry into Plaintiff's home without a warrant and without Plaintiff's knowingly and willful consent.

143. Plaintiff was placed under duress and extreme stress by the officer's demeanor and threats when the officer engaged in unlawful conduct of yelling and screaming at the Plaintiff and arrested Ms. Smith without filing criminal charges supporting probable cause.

144. That the Defendants committed the wrongs stated herein without probable cause, while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

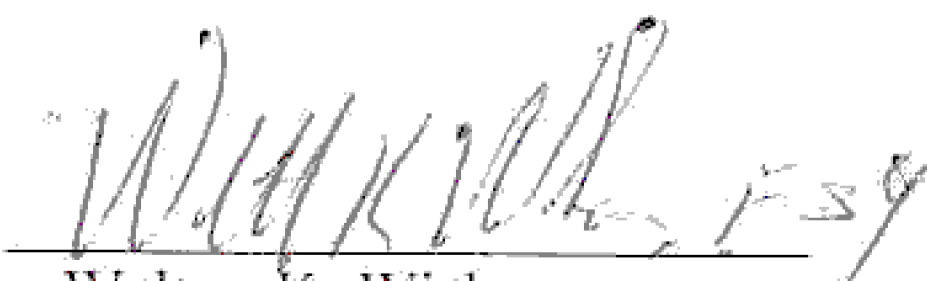
145. As a result, the City of New is liable for the unlawful acts of officer David as an employee of the New York City Police Department pursuant to Respondeat Superior.

WHEREFORE, Plaintiff, **Tykeisha Smith** respectfully request that this Court grant the following relief jointly and severally the Defendants:

- A. Compensatory damages in the amount to be determined by a jury at trial.
- B. Punitive damages against Police Officers, Brown, Lobb and Martin.
- C. An order awarding Plaintiff reasonable attorneys' fees under 42.U.S.C Section 1988, together with the costs of this action.
- D. Such other and further relief as the Court may deem just and proper.

Dated: March 9, 2023

Bronx, New York

By 
Welton K. Wisham
The Law Office of Welton K. Wisham
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

TYKEISHA SMITH,

Plaintiff,

AFFIDAVIT

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. DAVID, TAX REGISTRATION NO. 954701, 40th PRECINCT,
IN HIS INDIVIDUAL CAPACITY.

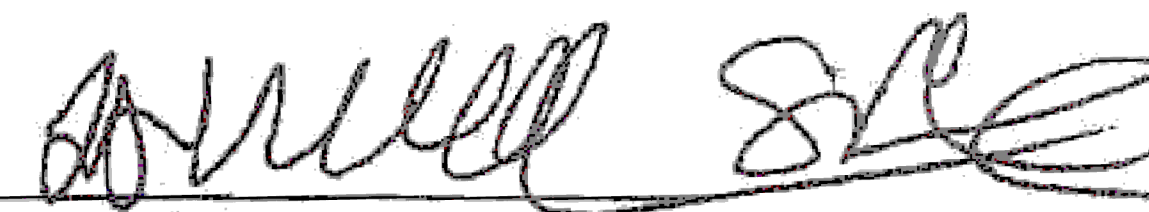
Defendants,

X

STATE OF NEW YORK)
COUNTY OF BRONX) ss.:

I, Tykeisha Smith , duly sworn, deposes and says under penalty of perjury that
Deponent is the Plaintiff in the within action, that I have read the foregoing Summons and
Complaint and knows the contents thereof ; that the same is true to deponent's own knowledge,
except as to those matters therein stated to be alleged on information and belief, and that as to
those matters deponent believes them to be true.

By



Tykeisha Smith
760 Melrose Ave, Apt 5M
Bronx, NY 10461

Sworn to before me

This 13th day of March, 2023

NOTARY PUBLIC

ROSANNA MINAYA
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 01M6052547
Qualified in New York County
Commission Expires December 18, 2026